CAMBRIAN AGENCIES PVT LTD t/a ARCHIES AGENCIES

Versus

HIMESH DULABH

AND

ANISH DULABH

AND

RIVERBOAT TRADING t/a WATERING HOLE

AND

KUMBULANI MATHEMA

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 8 JUNE AND 23 JUNE 2026

Opposed Application

D. Kossam, for the applicant
B. Mhandire, for the 1st - 4th respondents

KABASA J: This matter initially came before me by way of an urgent court application in which the applicant sought leave to sue the 3rd respondent. The application was placed on the roll of urgent matters but, after a case management meeting, I struck it off the roll for want of urgency. The matter has therefore continued on the ordinary roll, where the issues raised by the parties fall to be determined in the normal course. The applicant seeks the following order: -

1. The (Urgent) Court Application for leave to sue the 3rd Respondent be and is hereby granted.
2. The Applicant can bring any claim in any court of law against the 3rd and 4th Respondents in order to resolve any dispute which may arise between the parties.
3. The 3rd respondent pays costs at Legal Practitioner- Client scale if he(*sic*) opposes the application.

The background to the application is this: -

A lease agreement was entered into in or about 2009 between the applicant and the respondents in respect of property known as Number 99A George Silundika, Bulawayo. The applicant avers that no written lease agreement was ever executed, yet the respondents now produce a document purporting to be a lease signed by the applicant's late husband, who was a director of the company. The applicant disputes the authenticity of this document, pointing out that it bears no names of parties or witnesses and appears to have been manufactured after occupation. The applicant instituted *rei vindicatio* proceedings at the Magistrates Court, after discovering that the third respondent had placed another person in occupation who had no contractual relationship with the applicant, thereby rendering the occupation unlawful. The respondents raised preliminary objections, claiming that they could not be evicted while the company was under judicial management and that they were entitled to compensation for renovations which are not evident. They demanded sums exceeding USD$ 155 000 together with USD$ 8000 for alleged loss of business due to supposed closure of the premises by the applicant. The applicant disputes these claims as baseless and malicious, contending that they are contrived to secure perpetual occupation without payment of rent. At the Magistrates' Court, the respondents argued lack of jurisdiction and the necessity of leave from the High Court. Consequently, the applicant approached this Honourable Court under HCBC 1033/25 and HCBC 1064/25, including an urgent chamber application to stop operations at the premises. The matters suffered still births as the court directed that leave to sue be sought, hence the present application. The applicant states that the respondents are in arrears of rentals amounting to USD$ 8600 and City Council bills which by September 2025 had accumulated to USD$ 17 146.85. The City Council has threatened litigation to recover the amounts owed. The respondents have made it clear that they will neither vacate nor pay any sums due. The applicant contends that the respondents' defences are flimsy and malicious, designed to manufacture false claims and take over the property without payment, and therefore seeks leave of this Court to sue so that the matter may be determined on its merits.

The application is opposed by the respondents. In opposing the application, the respondents took points *in limine*. The first was to the effect that the applicant approached the Court with "dirty hands" because it has previously filed multiple applications and summons against the respondents, all of which were either struck off the roll with costs or withdrawn, and the applicant has not paid the costs so awarded. The respondents further contend that the

applicant was improperly seeking leave to sue the third respondent when it had already filed claims without such leave.

The second point *in limine* relates to misjoinder. The respondents contend that the 1st and 2nd respondents have been maliciously cited despite having no legal interest in the matter since the third respondent is under judicial management and is therefore represented by its judicial manager. This point was made in the previous rulings and the applicant ought not to persist in citing the directors whose powers have been divested after the appointment of a judicial manager.

The third point *in limine* is that the claim was prematurely brought before the Court because the applicant has not exhausted internal remedies, such as approaching the judicial manager with its claim or engaging the Master so its claim is ranked with the rest of the other creditors. Consequently, the respondents prayed that the application be struck off, with costs.

On the merits, the respondents disputed the applicant's version of events. The respondents admitted that a lease agreement was entered into in 2009 but insisted that it was a written lease and that it remained valid and subsisting as it had never been terminated. They argued that the notices to vacate were irregular and not properly served, save for one dated 1 March 2025. The respondents maintained that the *rei vindicatio* application was irrelevant since it had already been struck off by a competent court, and if the applicant was aggrieved, it should have appealed. They asserted that the respondents were entitled to compensation for improvements made to the property, denying that their claims exceeded the property's value. They attached a rates bill showing that the property was worth over USD$ 500 000. The respondents rejected allegations of illegal occupation, stressing that the lease agreement expressly identified the parties and that termination could not occur before compensation for improvements. They denied arrears in rentals, noting that even the applicant's notices and applications never alleged arrears.

At the hearing of the matter, I asked that I be addressed on both the preliminary issues and the merits, on the understanding that should the points *in limine* fail, I would proceed to determine the matter on the merits obviating the need for the parties to come back.

As regards the first point *in limine*, counsel for the applicant argued that it is incorrect for the respondents to state that the applicant is approaching the court with dirty hands. Counsel submitted that the respondents have malicious intentions as they raise the issue of costs but do

not pursue action to recover the said costs. This is so because the applicant has already asked that the costs be taxed and no action has been taken to have such costs taxed. Consequently, the applicant cannot therefore be accused of approaching the court with dirty hands. The principle of dirty hands governs a situation where a party is under a direct obligation imposed by law to act in a specific manner which obligation the party deliberately refuses to perform. (See *CFI Retail (Private) Limited* v *Manyika* S 08-16).

In casu, the applicant has made efforts to engage the respondents in a bid to have the costs taxed. The costs have not been taxed. How can the applicant be non-suited under the circumstances? The court cannot non-suit the applicant for a responsibility that falls entirely on the respondents. The point *in limine* therefore has no merit and is accordingly dismissed.

On the second point in limine, counsel for the respondents conceded that misjoinder cannot be a bar for the court to hear a matter, counsel however argued that, in previous litigation, two court orders have already been issued where it was ruled that the directors should not have been cited.

Counsel for the applicant contended that the rules are clear as regards misjoinder and the application cannot be said to be fatal because there are parties that have been joined to the proceedings when they should not have been joined. The High Court Rules 2021 are instructive. Rule 32 (11) provides that:

> "No cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party, and the court may in any cause or matter determine the issues or questions in dispute so far as they affect the rights and interests of the persons who are parties to the cause or matter."

The rule in question is plain and unequivocal, and its language must therefore be construed in accordance with its ordinary grammatical meaning (See *Ser Kang Wei (Xu Kangwei) and Anor* v *Yong Khong Yoong Mark and Anor* HH 301-26.)

In the case of *Svondo* v *Shadwell and Anor* HB 142-18 'B' the court had this to say:

> "I am aware that in terms of rule 87 (1) of the High Court Rules, 1971, no cause or matter shall be defeated by reason of the misjoinder or non-joinder of any party and that the court may still determine the issues or questions in dispute as far as they affect the rights and interests of the persons who are parties to the cause or matter. It must also be recognized that in terms of rule 87 (2) the court may, at any stage of the proceedings, order any person who ought to have been joined or whose presence is necessary, to be added as a party. It is significant that no person can be added without their consent signified in writing. What it boils down to is that by the powers reposed

to me by rule 87, I should order that the second respondent cease to be a party to these proceedings as it was improperly included."

While counsel for the respondents contended that it had already been ruled that the directors ought not to have been cited in the earlier application, such contention does not, in itself, furnish a basis to non-suit the applicant. The mere fact that the first and second respondents may have no direct and substantial interest in the matter does not preclude this Court from proceeding to hear and determine the dispute on its merits. I am therefore persuaded by the submissions of counsel for the applicant that the preliminary point raised is devoid of merit. It is accordingly dismissed.

The third point *in limine* relate to the claim being brought prematurely to the court. Counsel for the respondents argued that a creditor with a claim against a company under judicial management is obliged to lodge a claim with the Master of the High Court and the claim will be considered upon consultation with the judicial manager. The applicants have not done so and so their application is premature, so counsel argued.

Counsel for the applicant held a different view and argued that attempts were made to engage the respondents and they were unsuccessful. The correspondence filed of record speaks to such attempts which have not yielded the desired result.

I am of the considered view that the submission advanced on behalf of the respondents is misplaced. The application presently before this Court is not one for the enforcement of a claim but rather an application for leave to enable the Applicant to bring such claim before the Court. The uncontroverted facts are that the respondents are in occupation of the applicant's premises. The applicant faces possible litigation over unpaid utility bills and risk losing the property. No rentals are forthcoming. The applicant should therefore be allowed to assert its claim and have that adjudicated on for it to then have a judgment which can be enforced. In that regard, the objection raised *in limine* is devoid of merit and is accordingly dismissed.

I now turn to the merits of the matter. The applicant argues that the 3rd respondent is in rental arrears and that there is an outstanding bill for rates owed to city council. The applicant further argues that the 3rd respondent is in illegal occupation of the property in question. Counsel for the respondents conceded that the 3rd respondent is indeed occupying the property in question, however, counsel argued that such occupation is not illegal.

In the case of *Tetrad Investment Bank Ltd (Under Judicial Management)* v *Bindura University of Science Education and Sheriff of Zimbabwe* S5-19 the court had this to say:

> "This is why the law allows the court when placing a company under judicial management to order that all actions and proceedings and the execution of all writs, summonses and other processes against the company be stayed and be not proceeded with without the leave of the court. (See section 301(1) of the Companies Act [*Chapter 24:03*]). Thus, the law allows parties who wish to proceed against a company under judicial management to approach the court for leave to proceed against that company."

The protection afforded a company under judicial management is meant to ensure the avoidance of a proliferation of litigation which would exacerbate the distressed company's woes. It also allows for an orderly management of creditors and uninterrupted recovery efforts by the judicial manager. (See *Rio Zim (Pvt) Limited v Trust Bank Corporation Limited (in liquidation)* S87-21) It is meant to allow the company to recover. This does not mean such protection is to be abused to the detriment of another. The applicant is a company which is likely to lose its property due to mounting debt. Should they not be allowed to ameliorate the hardship by instituting litigation to recover that property?

It is common cause that the 3rd respondent is presently under judicial management. It is equally undisputed that the 3rd respondent remains in occupation of the immovable property which forms the subject matter of these proceedings. The applicant seeks to institute a claim for rental arrears against the third respondent. In terms of the law, such proceedings cannot be commenced without the leave of this Court, given the status of the 3rd respondent which is under judicial management. The question whether the 3rd respondent is indeed indebted in respect of rentals is not one for determination at this stage. That issue properly falls to be ventilated in the substantive litigation which the applicant intends to pursue. What cannot be gainsaid however is that ordinarily a tenant is obliged to pay rentals to the landlord. The applicant's contention is that such rentals are not being paid. The present application is therefore confined to the procedural requirement of obtaining leave to sue. Having considered the matter and the uncontroverted facts already alluded to, I am satisfied that the applicant has established sufficient basis to be granted leave to sue so as to protect its own interests over a property which is owns. Accordingly, the application succeeds.

As regards costs, I am of the view that, given the repeated efforts by the applicant to engage the respondents over this property and the failed attempts at litigating, the applicant ought to be awarded costs. I am however not persuaded to award punitive costs.

That said, I make the following order:

1. The application for leave to sue the 3rd respondent be and is hereby granted.
2. The applicant be and is hereby granted leave to sue the 3rd respondent for arrear rentals and eviction from the property known as Number 99A George Silundika, Bulawayo.
3. The 3rd respondent shall pay costs of this application.

Mabika Law Chambers, applicant's legal practitioners

Masawi and Partners, respondents' legal practitioners